EXHIBIT 2

SOLE SOURCE PROCUREMENT JUSTIFICATION

ORANGE COUNTY PROCUREMENT DIVISION

[rev. 03-18]

SOLE SOURCE PROCUREMENT JUSTIFICATION

Vendor Name:			
Date Submitted:		Department/Division:	
Requisition Number:		Technical Contact Name:	
Amount of Purchase:		Technical Contact Phone:	

Sole source purchases are defined as purchases of supplies, equipment and contractual services that meet both of the following criteria: It is the only good or service that will produce the desired results or are the most appropriate for the given situation and it is available from only one source of supply or the use of such source is both economically and operationally in the County's best interest. In accordance with Florida Statute 839.13, any public officer, or employee of a public agency, knowingly and willfully concealing any issue or falsifying any document shall be guilty of a misdemeanor punishable as provided in FS. 775.082 or FS.775.083.

1. **What are the circumstances resulting in non-competitive procurement?**

   ❑ This item/service is available only from a single source.

   ❑ The federal awarding agency or pass-through entity expressly authorized non-competitive proposals in response to a written request from the non-Federal entity. (Documentation is required)

   ❑ After solicitation of a number of sources, competition is determined inadequate.

2. **If this product/service is proprietary have you confirmed that there are no authorized distributors or service partners able to compete for this award?**

   ❑ Yes, vendor has confirmed in writing that they are an exclusive distributor or the exclusive source of services. (If yes, documentation is required. Include with this form the vendor's signed statement on letterhead.)

   ❑ Not Applicable

3. **Explain what part(s) of the requirement restrict this requisition to only one supplier and explain why these requirements are essential to the accomplishment of your work. Explain any necessity for compatibility with existing equipment or instrumentation (if applicable).**

4. **List any known company, other than your suggested source, who supplies similar goods/services and provide the reasons competing goods/services are not conforming.**

5. **Detail any adverse impacts to the County if this sole source is not approved. If the recommended source was unable to provide these goods/services how would the County accomplish its objective?**

6. **Detail the research and analysis conducted to determine that the pricing associated with this sole source requisition is fair and reasonable?**

APPROVAL PROCESS

I certify that to the best of my knowledge, this request is a sole source and the information provided herein is accurate and truthful.

Note: Procurements over $100,000 may require a Price Negotiation Memorandum and Board Approval.

REQUESTING DEPARTMENT / DIVISION

[Sign] _____ _____

Requestor/ Technical Contact Date

[Sign] _____ _____

Division Manager OR Department Director Date

_____

[Print Div. Manager or Dept. Director Name]

PROCUREMENT DIVISION APPROVAL

[Sign] _____ _____

Buyer/ Purchasing Agent / Senior Contract Administrator Date

[Sign] _____ _____

Supervisor Date

[Sign] _____ _____

Division Manager / Administrator Date

ORANGE COUNTY PROCUREMENT DIVISION

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SOLE SOURCE PROCUREMENT FREQUENTLY ASKED QUESTIONS

Question 1:	**ABC Firm is an authorized distributor of product XYZ, is this a sole source?**
Answer 1:	The term authorized distributor does not convey exclusivity. If there is a formal geographic territory imposing restrictions against competition ABC Firm may be considered a sole source. If there are multiple distributors, without restrictions, competition will not be waived.

Question 2:	**ABC Firm has a long history working with the County, is this a sole source?**
Answer 2:	No, past performance or known qualifications shall not be the basis of waiving the requirement for competition.

Question 3:	**It is more convenient to have a long-term supplier, is this a sole source?**
Answer 3:	No, however, noting the advantages of term contracting, the Procurement Division encourages the use of competitively solicited multi-year contracts.

Question 4:	**Product XYZ is known to be a better quality product, is this a sole source?**
Answer 4:	No, the determination of quality shall be made on the basis of competition.

Question 5:	**ABC Firm is offering a 50% off sale this month, is this a sole source?**
Answer 5:	No, the determination of best pricing shall be made on the basis of competition.

Question 6:	**Equipment Model 123 requires specific parts for compatibility purposes, is this a sole source?**
Answer 6:	If those parts are available from a single exclusive distributor this may be considered a sole source.

Question 7:	**This service is highly technical and the recommended source was the original implementer, is this a sole source?**
Answer 7:	If a new source would be unable to provide services without a substantial effort to survey custom hardware as built or interpret custom programming this may be a sole source.

Question 8:	**My equipment is under warranty, although there are multiple suppliers, utilizing another supplier would void my warranty, is this a sole source?**
Answer 8:	This may be approved as a sole source. The period of the warranty must be specified on the sole source justification form.

Question 9:	**ABC Firm has compliant insurance that has been approved by Risk Management, is this a sole source?**
Answer 9:	No, compliant insurance or known qualifications shall not be the basis of waiving the requirement for competition.

Question 10:	**This was approved as a sole source last year, is this still a sole source?**
Answer 10:	Sole sources require a new submittal and analysis for each request.

Question 11:	**How do I determine that the pricing of a sole source is reasonable?**
Answer 11:	Justification of price reasonableness may include past purchase history including specific references to contracts/purchase orders, analysis of purchases by other Governmental Agencies, comparison to an internally developed project estimate, comparison to an authorized consultant's estimate or other well documented justification. See the Procurement Procedures Manual, Section 4, for additional instruction on price reasonableness.